

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2611
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 8-529, Arizona Revised Statutes, is amended to
3 read:

4 8-529. Children in foster care and kinship foster care;
5 rights

6 A. A child WHO IS in foster care ~~and~~ OR kinship foster care has the
7 following rights:

8 1. To appropriate care and treatment in the least restrictive
9 setting available that can meet the child's needs according to the best
10 judgment of the foster parent.

11 2. To live in a safe, healthy and comfortable placement where the
12 child can receive reasonable protection from harm and appropriate privacy
13 for personal needs and where the child is treated with respect.

14 3. To be placed with a relative when such placement is in the best
15 interest of the child.

16 4. To be placed with or in close proximity to the child's siblings
17 when possible and to visit and have contact with siblings and family
18 members when ~~it~~ THE PLACEMENT, VISITATION OR CONTACT is in the best
19 interest of the child.

20 5. To know why the child is in foster care and what will happen to
21 the child and to the child's family, including siblings, and case plans.

22 6. Whenever possible, to be placed with a foster family that can
23 accommodate the child's communication needs.

24 7. To be disciplined in a manner that is appropriate to the child's
25 level of maturity and not be subjected to physical discipline methods.

26 8. To attend community, school, extracurricular and religious
27 services and activities of the child's choice to the extent that it is
28 appropriate for the child, as planned and discussed with the child's

1 placement worker and caseworker and based on caregiver ability if
2 transportation is available through a responsible party.

3 9. To go to school and receive an education that fits the child's
4 age and individual needs. If remaining in the child's current school is
5 not in the child's best interest, the child has the right to be enrolled
6 in the least restrictive school available.

7 10. To training in personal care, hygiene and grooming.

8 11. To clothing that fits comfortably and is adequate to protect the
9 child against natural elements such as rain, snow, wind, cold and sun.

10 12. To have personal possessions at home and to acquire additional
11 possessions within reasonable limits, as planned and discussed with the
12 child's foster parent, placement worker and caseworker, and based on
13 caregiver ability.

14 13. To personal space, preferably in the child's foster home bedroom
15 for storing clothing and belongings.

16 14. To healthy foods in healthy portions that are appropriate for
17 the child's age.

18 15. To comply with any approved visitation plan, and to have any
19 restrictions explained to the child in a manner and level of details
20 deemed age appropriate by the foster parent in agreement with the
21 caseworker and documented in the child's record.

22 16. If the child is six years of age or older, to receive contact
23 information for the child's caseworker, attorney or advocate and to speak
24 with them in private if necessary.

25 17. To be represented by an attorney in all proceedings initiated
26 pursuant to this title.

27 18. To participate in age appropriate child's service planning and
28 permanency planning meetings and to be given a copy or summary of each
29 service plan and service plan review. The child may request someone to
30 participate on the child's behalf or to support the child in this
31 participation.

32 19. To attend the child's court hearing and speak to the judge.

33 20. To have the child's records and personal information kept
34 private and discussed only when it is about the child's care, except **THAT**
35 the foster parent shall have full access to the records to determine **if**
36 **WHETHER** the child will be successful in the home. During the foster
37 placement, if the foster parent requests to view the record on
38 experiencing problems with the child's adjustment, the full record shall
39 be made available for viewing by the foster parent.

40 21. To receive **IMMEDIATE AND UNBIASED** medical, dental, vision and
41 mental health services and to be informed about diagnoses and treatment
42 options as is developmentally appropriate.

43 22. To be free of unnecessary or excessive medication.

44 23. To receive emotional, mental health or chemical dependency
45 treatment separately from adults who are receiving services, as planned
46 and discussed with the child's placement worker and caseworker, as is
47 financially reasonable for the foster parent.

1 24. To report a violation of personal rights specified in this
2 section without fear of ~~punishment~~, interference, coercion, INTIMIDATION
3 or retaliation. ~~, except that an appropriate level of punishment may be~~
4 ~~applied if the child is proven to have maliciously or wrongfully accused~~
5 ~~the foster parent.~~ A FOSTER PARENT, A KINSHIP CAREGIVER, A FOSTER HOME, A
6 GROUP FOSTER HOME, A GROUP HOME OR AN EMPLOYEE, CONTRACTOR OR AGENT OF A
7 HOME OR FACILITY WHERE A CHILD WHO IS IN THE CARE OF THE DEPARTMENT IS
8 PLACED MAY NOT TAKE, THREATEN OR CAUSE RETALIATORY ACTION AGAINST A CHILD
9 BECAUSE THAT CHILD REPORTS A SUSPECTED VIOLATION OF PERSONAL RIGHTS
10 PURSUANT TO THIS PARAGRAPH OR PARTICIPATED IN AN INQUIRY OR INVESTIGATION
11 OF A VIOLATION OF PERSONAL RIGHTS AND THE CHILD MADE THE REPORT OF A
12 VIOLATION OF PERSONAL RIGHTS OR PARTICIPATED IN AN INQUIRY OR
13 INVESTIGATION OF A VIOLATION OF PERSONAL RIGHTS IN GOOD FAITH OR WITH A
14 REASONABLE BELIEF THAT THE REPORT OF A VIOLATION OF PERSONAL RIGHTS WAS
15 TRUE. FOR THE PURPOSES OF THIS PARAGRAPH, "RETALIATORY ACTION":

16 (a) MEANS AN ACTION OR OMISSION THAT WOULD DETER A REASONABLE CHILD
17 OF SIMILAR AGE AND CIRCUMSTANCES FROM MAKING A REPORT OF A VIOLATION OF
18 PERSONAL RIGHTS PURSUANT TO THIS PARAGRAPH AND THAT MATERIALLY ADVERSELY
19 AFFECTS ANY OF THE FOLLOWING FOR A CHILD:

20 (i) PLACEMENT.

21 (ii) SERVICES.

22 (iii) EDUCATION.

23 (iv) MEDICAL OR BEHAVIORAL HEALTH CARE.

24 (v) PRIVILEGES.

25 (vi) VISITATION OR CONTACT.

26 (vii) ANY OTHER CONDITIONS OF PLACEMENT.

27 (b) INCLUDES:

28 (i) INITIATING, REQUESTING, RECOMMENDING OR CAUSING A DISRUPTION IN
29 PLACEMENT, TRANSFER OR CHANGE IN LEVEL OF CARE OR SUPERVISION, INCLUDING A
30 REFERRAL TO A HIGHER LEVEL OF CARE, WITHOUT DOCUMENTED, NONRETALIATORY
31 JUSTIFICATION.

32 (ii) DENYING, RESTRICTING, DELAYING OR CONDITIONING PRIVILEGES,
33 NORMAL ACTIVITIES, VISITATION OR CONTACT, RECREATION, PARTICIPATION IN
34 EDUCATION, SERVICES OR OPPORTUNITIES TO WHICH THE CHILD IS OTHERWISE
35 ENTITLED.

36 (iii) IMPOSING DISCIPLINARY OR CORRECTIVE ACTION OR MORE RESTRICTIVE
37 CONDITIONS NOT BASED ON CONTEMPORANEOUS DOCUMENTED CONDUCT THAT IS NOT
38 RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.

39 (iv) KNOWINGLY MAKING, CAUSING OR ENCOURAGING ANOTHER PERSON TO MAKE
40 A FALSE, FRAUDULENT OR MATERIALLY MISLEADING STATEMENT, INCIDENT REPORT,
41 ALLEGATION OR RECORD ABOUT THE CHILD TO RELEVANT AUTHORITIES.

42 (v) ALTERING, DESTROYING OR CONCEALING RECORDS OR EVIDENCE THAT IS
43 RELATED TO A REPORT OF A VIOLATION OF A CHILD'S PERSONAL RIGHTS.

44 25. To be informed in writing of the name, address, telephone number
45 and purpose of the Arizona protection and advocacy system for disability
46 assistance.

47 26. TO VOLUNTARILY PARTICIPATE IN ENRICHMENT ACTIVITIES.

1 27. TO BE FREE OF BULLYING OR DISCRIMINATION.

2 ~~26.~~ 28. To understand and have a copy of the rights listed in this
3 section.

4 B. A child WHO IS in foster care or kinship foster care AND who is
5 at least fourteen years of age has the following rights:

6 1. To attend preparation for adult living classes and activities as
7 appropriate to the child's case plan, as is financially reasonable for the
8 foster parent.

9 2. To a transition plan that includes career planning and
10 assistance with enrolling in an educational or vocational job training
11 program.

12 3. To be informed of educational opportunities, including
13 information regarding assistance and funding for postsecondary and
14 vocational education.

15 4. To assistance in obtaining an independent residency when the
16 child is too old to remain in foster care from the child's caseworker,
17 attorney or advocate.

18 5. To request a court hearing for a court to determine ~~if~~ WHETHER
19 the child has the capacity to consent to medical care that is directly
20 related to an illness, disease, deformity or other physical malady.

21 6. To receive help with obtaining a driver license, social security
22 number, birth certificate or state identification card and credit reports
23 with assistance in interpreting the reports and resolving inaccuracies in
24 the report. The foster parent shall have discretion to determine ~~if~~
25 WHETHER the child is responsible and mature enough to become a licensed
26 driver.

27 7. To receive necessary personal information within thirty days
28 after leaving foster care, including the child's birth certificate,
29 immunization records and information contained in the child's education
30 portfolio and health passport.

31 8. To participate in or reenter extended foster care when the child
32 is at least eighteen and under twenty-one years of age pursuant to section
33 8-521.02.

34 C. The department shall provide information regarding a child's
35 rights pursuant to this section and assistance in understanding and
36 enforcing these rights to each child who enters foster care or kinship
37 foster care or when there is a change in the child's foster care plan.
38 The information shall also include the telephone number and email address
39 of the department, the child's assigned case manager, the department's
40 office of the ombudsman and the ombudsman-citizens aide. A copy of these
41 rights shall be posted in a conspicuous place in all foster ~~care~~ HOMES and
42 group FOSTER homes.

43 D. If a child who is in foster care or kinship foster care believes
44 that the child's rights under this section have been violated, the child
45 or the child's representative may:

1 1. File a complaint with the department, the department's office of
2 the ombudsman or the ombudsman-citizens aide pursuant to section 41-1376.
3 A formal grievance may be initiated with the ombudsman at any time.

4 2. Notify the juvenile court in the child's ongoing dependency,
5 severance or adoption proceeding, either orally or in writing, that the
6 child's rights are being violated and request appropriate equitable
7 relief. The court shall act on the notification as necessary within ~~its~~
8 THE COURT'S discretion to promote the best interest of the child.

9 E. The rights provided in this section do not establish an
10 independent cause of action.

11 Sec. 2. Section 8-530.06, Arizona Revised Statutes, is amended to
12 read:

13 8-530.06. Group foster homes; employees; random drug
14 screening; reporting of results; confirmation;
15 employee termination

16 A. The department shall develop and implement policies and
17 procedures to conduct random quarterly drug screening of employees of a
18 group foster home. The drug screening policies and procedures shall
19 comply with title 23, chapter 2, article 14. A GROUP FOSTER HOME SHALL
20 SUBMIT TO THE DEPARTMENT VERIFICATION OF THE COMPLETION OF THE RANDOM
21 QUARTERLY DRUG SCREENING THAT IS CONDUCTED PURSUANT TO THIS SUBSECTION AND
22 THE RESULTS OF THE SCREENINGS. THE DEPARTMENT SHALL REPORT ALL RESULTS,
23 INCLUDING THE FOLLOWING:

- 24 1. POSITIVE RESULTS.
25 2. NEGATIVE RESULTS.
26 3. THE REFUSAL OF AN EMPLOYEE TO SUBMIT TO A RANDOM DRUG SCREENING.
27 4. ANY INCIDENT OF TAMPERING WITH A DRUG SCREENING SPECIMEN OR
28 RESULT.

29 B. An employee of a group foster home may not have contact with any
30 child living at the group foster home before an initial drug screening.

31 C. The department ~~may~~ SHALL conduct ~~random~~ drug screening of any
32 group foster home employee if the employee is involved in an accident or
33 incident in which a child ~~that~~ WHO lives at the group foster home is
34 injured. A group foster home shall submit the results of all ~~random~~ drug
35 screening THAT IS REQUIRED BY THIS SUBSECTION to the department within
36 forty-eight hours after receiving the drug screening results. A GROUP
37 FOSTER HOME SHALL REPORT A POSITIVE DRUG SCREENING RESULT, AN EMPLOYEE'S
38 REFUSAL TO SUBMIT TO A DRUG SCREENING OR THE TAMPERING WITH A DRUG
39 SCREENING SPECIMEN OR RESULT TO THE DEPARTMENT WITHIN FORTY-EIGHT HOURS
40 AFTER RECEIVING THE POSITIVE RESULT OR AFTER THE REFUSAL OR INCIDENT OF
41 TAMPERING.

42 D. ON RECEIVING AN EMPLOYEE'S POSITIVE DRUG SCREENING RESULT OR
43 NONNEGATIVE DRUG SCREENING RESULT, ON AN EMPLOYEE'S REFUSAL TO SUBMIT TO A
44 DRUG SCREENING OR ON AN INCIDENT OF TAMPERING WITH A DRUG SCREENING
45 SPECIMEN OR DRUG SCREENING RESULT, A GROUP FOSTER HOME SHALL IMMEDIATELY
46 REMOVE THAT EMPLOYEE FROM ALL CONTACT WITH ANY CHILD WHO IS A RESIDENT AT
47 THE GROUP FOSTER HOME UNTIL ADDITIONAL CONFIRMATORY DRUG SCREENING AND

1 REVIEW OF THE ADDITIONAL CONFIRMATORY DRUG SCREENING BY A MEDICAL
2 PROFESSIONAL OCCURS. IF THE CONFIRMATORY TESTING RESULTS IN A POSITIVE
3 RESULT FOR THE PRESENCE OF AN ILLEGAL OR UNAUTHORIZED SUBSTANCE, THE GROUP
4 FOSTER HOME SHALL TERMINATE THE EMPLOYEE FROM EMPLOYMENT WITH THE GROUP
5 FOSTER HOME.

6 Sec. 3. Section 8-530.08, Arizona Revised Statutes, is amended to
7 read:

8 8-530.08. Congregate care; assessment; plans; definitions

9 A. Within thirty days after placing a child in a congregate care
10 setting, the department shall do the following:

11 1. Work with the child, if developmentally appropriate, the child's
12 attorney and the child's family and service team to do both of the
13 following:

14 (a) Establish a plan to place ~~a~~ THE child in an appropriate
15 family-like setting. The plan shall be specific to the child and, if
16 applicable, the child's siblings and the child's minor parent or parents.
17 The plan shall include steps to identify and recruit an appropriate
18 family-like setting for the child. In developing the plan, the department
19 shall identify and consider the placement preferences of the child.

20 (b) As part of the plan established pursuant to subdivision (a) of
21 this paragraph, develop a child-specific congregate care implementation
22 plan to ensure that the child's needs are appropriately met while the
23 child is placed in a congregate care setting.

24 2. Conduct an on-site visit of a group home within forty-eight
25 hours after placing a medically complex child in a group home to ensure
26 that all staff members who will have contact or care responsibilities for
27 a medically complex child have proper training.

28 3. Document both of the following in the child's case plan:

29 (a) The plan for placement of ~~a~~ THE child in an appropriate
30 family-like setting and the child-specific congregate care implementation
31 plan pursuant to paragraph 1, ~~subdivisions (a) and (b)~~ of this subsection.

32 (b) The results and findings of the group home on-site ~~survey~~
33 VISIT, if applicable, pursuant to paragraph 2 of this subsection.

34 B. For the purpose of this section:

35 1. "Family and service team" includes any of the following:

36 (a) Coaches.

37 (b) Court appointed special advocates.

38 (c) Department employees.

39 (d) Former foster caregivers.

40 (e) Mentors.

41 (f) Teachers.

42 (g) A DESIGNATED ADVOCATE.

43 ~~(g)~~ (h) Any other individuals who have knowledge of the child.

44 2. "Medically complex child" means a child who the department has
45 determined has or is at risk for a chronic physical or developmental
46 condition and who requires health-related services beyond the
47 health-related services that are required by a child in general.

1 Sec. 4. Title 8, chapter 4, article 4, Arizona Revised Statutes, is
2 amended by adding section 8-530.10, to read:

3 8-530.10. Group foster homes; safety; employee screening;
4 rules; policies; procedures

5 THE DEPARTMENT SHALL DEVELOP AND IMPLEMENT RULES, POLICIES AND
6 PROCEDURES IN GROUP FOSTER HOMES THAT DO ALL OF THE FOLLOWING:

7 1. REQUIRE COMPREHENSIVE BACKGROUND CHECKS THAT INCLUDE A COMPLETE
8 CRIMINAL HISTORY CHECK, SUBSTANCE USE SCREENING AND VERIFICATION OF
9 REFERENCES FOR ALL GROUP FOSTER HOME EMPLOYEES.

10 2. REQUIRE MANDATORY TRAINING IN TRAUMA-INFORMED CARE, MENTAL
11 HEALTH CRISIS MANAGEMENT AND FIRST AID FOR ALL GROUP FOSTER HOME
12 EMPLOYEES.

13 3. PROHIBIT GROUP FOSTER HOME EMPLOYEES FROM USING PERSONAL CELL
14 PHONES WHILE THE EMPLOYEE IS AT THE GROUP FOSTER HOME.

15 4. ESTABLISH MECHANISMS FOR REPORTING STAFF MISCONDUCT OR NEGLECT.

16 5. REQUIRE THE GROUP FOSTER HOME TO DOCUMENT AND VERIFY THAT A
17 CHILD WHO IS LIVING IN A GROUP FOSTER HOME ATTENDS MEDICAL AND MENTAL
18 HEALTH CARE APPOINTMENTS.

19 6. ESTABLISH REPORTING AND FOLLOW-UP POLICIES TO PREVENT MEDICAL
20 NEGLECT AND ENSURE THE CONTINUITY OF CARE FOR A CHILD WHO IS LIVING IN A
21 GROUP FOSTER HOME.

22 Sec. 5. Title 36, chapter 10, article 1, Arizona Revised Statutes,
23 is amended by adding section 36-1202, to read:

24 36-1202. Juvenile group homes; resident safety; policies;
25 rules; procedures; definitions

26 A. THE DEPARTMENT [OF HEALTH SERVICES] SHALL DEVELOP AND IMPLEMENT
27 RULES, POLICIES AND PROCEDURES FOR GROUP HOMES THAT DO ALL OF THE
28 FOLLOWING:

29 1. REQUIRE MINIMUM SECURITY STANDARDS FOR GROUP HOMES THAT INCLUDE
30 ALL OF THE FOLLOWING:

31 (a) SECURE ENTRY AND EXIT.

32 (b) FUNCTIONAL LOCKS.

33 (c) MONITORED COMMON AREAS.

34 2. ESTABLISH TRAUMA-INFORMED SAFETY PROTOCOLS THAT PREVENT GROOMING
35 AND EXPLOITATION OF AND UNAUTHORIZED EXITS BY THE RESIDENTS.

36 3. ALLOW UNANNOUNCED INSPECTIONS AND INDEPENDENT AUDITS BY THE
37 GROUP HOME'S LICENSING AUTHORITY.

38 4. ESTABLISH TECHNOLOGY POLICIES THAT LIMIT OR MONITOR TELEPHONE
39 USE BY RESIDENTS AND THAT PROVIDE APPROPRIATE SECURITY THROUGH THE USE OF
40 APPLICATIONS AND TECHNOLOGY.

41 5. PROHIBIT GROUP HOME EMPLOYEES FROM SHARING [RESIDENTS]
42 [RESIDENTS'] PERSONAL INFORMATION OR SCHEDULES.

Senate Amendments to H.B. 2611

1 B. FOR THE PURPOSES OF THIS SECTION, "GROUP HOME", "LICENSING
2 AUTHORITY" AND "RESIDENT" HAVE THE SAME MEANINGS PRESCRIBED IN SECTION
3 ~~[32-1201]~~ [36-1201].

4 Sec. 6. Short title

5 This act may be cited as the "Youth Safety, Rights and Mental Health
6 Protection Act".

7 Enroll and engross to conform

8 Amend title to conform

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